

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 08, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-02512	Vincent Inaudi vs General Motors, LLC
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Motion for Summary Judgment

Defendant's motion for summary judgment is DENIED, as there is a triable issue of material fact.

Pursuant to Code of Civil Procedure section 437c, subdivision (q) the court will not rule on Plaintiff's objections as they were not relevant to the disposition of this motion.

To grant summary judgment, the court must determine from the evidence presented that "there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code of Civil Procedure section 437c subd. (c).)

"The court focuses on issue finding; it does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (*J.H. v. Los Angeles Unified School Dist.* (2010) 183 Cal.App.4th 123, 139.)

All doubts regarding the existence of material issues of fact are resolved in favor of the party opposing summary judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1556, *modified* (June 15, 1992).)

Here, there is a triable issue of material fact as to whether GM calculated its repurchase offer in accordance with Civil Code section 1793.2, subdivision (d)(2); see evidence cited in Plaintiff's response to Defendant's Separate Statement at UMF 4 and Plaintiff's AMF 5 regarding this fact.

As there is a dispute as to the calculation of the repurchase offer there is a triable issue of material fact. Accordingly, the motion for summary judgment must be denied.

24CV-03375

Melesio Ortega vs Anthony Diaz, et al.

Order to Show Cause Re: Dismissal

CONTINUED to September 9, 2026, at 8:15 a.m. for STATUS CONFERENCE. The Court notes that a declaration was filed at 9:38 p.m. on May 26, 2026, and due to such late filing was not available at the time of the status conference on May 27, 2026. Although no declaration has been filed in advance of this hearing, the Court continues the matter to afford counsel enough time to gather necessary declarations for the default. **ANY REQUEST FOR CONTINUANCE OF THE STATUS CONFERENCE MUST BE FILED NO LATER THAN 5 COURT DAYS PRIOR TO THE HEARING** in order to be considered. Failure to appear at the continued hearing date or to file a timely declaration will result in the setting of another OSC and the issuance of sanctions.

24CV-04537

Mandeep Dhillon vs General Motors LLC, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED to September 23, 2026, at 8:15 a.m. due to the pending motion to tax costs, set for hearing on August 18, 2026.

25CV-01207

Ana Hernandez Linares vs Triangle S Dairy, LLC

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed February 27, 2026, with an anticipated dismissal date of May 8, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.
